land up to 10 hectares situated within 100 km of international borders or the LoC/LAC can be exempt from environmental laws while being diverted for strategic projects. Tabling the bill, Union environment minister Bhupender Yadav said it seeks to broaden the horizons of the Forest (Conservation) Act, 1980, reconciling India's aim to increase forest cover for the creation of a carbon sink of additional 2.5-3 billion tonnes of CO2 equivalent by 2030 with the "need to fast-track strategic and security-related projects of national importance". The bill was sent to a joint committee of both Houses for detailed examination. The panel is expected to submit its report by the first week of the next LS session.

As things stand, stringent laws are in place to protect the depleting forest cover in many environmentally fragile areas along the LoC and the LAC in Ladakh, Uttarakhand, Himachal Pradesh and Arunachal Pradesh—these answer to the need to shore up our buffer amidst the twin ravages of climate change and uncontrolled developmental activity. Consequently, defence sources claim getting forest and wildlife clearances poses a hurdle for projects in these areas. Around 150 strategic military projects spanning nine states and Union territories are stuck in environmental issues, says a senior Indian army official. The projects range from roads, advanced landing grounds and helipads to border outposts, command posts, firing ranges and communication towers. According to an official from the BRO, which develops border infrastructure, 36 road projects in Arunachal have fallen afoul of green laws, while critical works in Sikkim, Uttarakhand, Himachal, J&K, Ladakh, Mizoram, Manipur and Rajasthan too await environment clearances.

Strategic infrastructure, however, needs to be coupled with responsible use of the environment. Kanchi Kohli, an environmental law and policy researcher, says that forest policy in the border areas requires understanding of social and ecological risks and treating them as part of internal and cross-border security measures, especially in the light of climate-induced disasters. "This will help regulatory agencies assess the levels of leniency required and measures needed to address risks in instances where exemptions are granted," Kohli says.

Pushpita Das, research fellow and coordinator of the Internal Security Centre at the Manohar Parrikar Institute for Defence Studies and Analyses (MP-IDSA), says getting green clearances is a long-drawn process. According to her, though the Union ministry of environment and forests (MoEF) had reduced the processing time for roads along the India-China border from 90 days to 30 days at the state government level and from 60 to 30 days at the Union government level and introduced a single window system to eliminate delays, the average time to obtain a



BEEFING UP
An infrastructure project in progress near the LAC in eastern Ladakh

HIGHLIGHTS OF FOREST AMENDMENT BILL 2023

- Tabled on March 29, the Forest (Conservation) Amendment Bill 2023 seeks to limit the scope of applicability of the Forest (Conservation) Act 1980 to just land notified as 'forests'
- Seeks to exempt strategic projects of national importance within 100 km of international borders, the LAC and the LoC
- Security-related infrastructure requiring up to 10 hectares of forest land and paramilitary force camps requiring up to 5 hectares in Left-wing extremism-affected areas to be exempt
- Broaden the horizons of the 1980 Act keeping in view India's aim of increasing forest cover to create a carbon sink of an additional 2.5-3 billion tonnes of Co2 equivalent by 2030
- Exempted land will be used to provide access to small habitations along public roads
- Non-forest land can now be used to promote private plantations as compensatory afforestation to get forest clearance for projects